DIVISION BENCH ITEM NO.103

NATIONAL COMPANY LAW TRIBUNAL
ALLAHABAD BENCH
PRAYAGRAJ

CA NO.28/2023 IN CP (CAA) No.05/ALD/2023 in CA (CAA) No.9/ALD/2022
(Second Motion)

CORAM:

1. **SHRI PRAVEEN GUPTA,**
   HON'BLE MEMBER (JUDICIAL)
2. **SHRI ASHISH VERMA,**
   HON'BLE MEMBER (TECHNICAL)

Date of Order: 14th December, 2023

Attendance-Cum-Order Sheet of the Hearing.

NAME OF THE COMPANY	**EPACK COMPONENTS PVT. LTD. WITH EPACK DURABLE PVT. LTD.**
UNDER SECTION	**230/232 OF COMPANIES ACT, 2013**

COUNSEL APPEARED THROUGH PHYSICAL/ VIRTUAL HEARING:

Sh. Saurabh Khanna, Adv. *: For the Petitioner Company*
Sh. Shivendra Bahadur Singh, CGSC *: For the ROC*
Sh. Gaurav Mahajan, Sr. S.C. *: For the I.T. Deptt.*
Sh. Ajit Kumar Singh, AOL *: For the O.L. Alld.*

ORDER

Ld. Counsels representing the parties are present.

1. As per the previous order dated 06.12.2023 *vide* para no.5, it was observed as under :-

> *5. Ld. Counsel representing the Income Tax Department, however states that apart from the pending amount liable to be paid, as referred to above, the proceedings are also pending U/s 148. He therefore seeks a short adjournment particularly in the context of the pending proceedings U/s 148 as well as in the context of CA No.28/2023 filed by the petitioner companies, in which the amendment was sought to the petition filed for second motion petition, whereby the Transferee Company was converted from private limited to public limited.*

-Sd- ***-Sd-***

2. The Ld. Counsel representing the Income Tax Department, however, on the other hand states that the proceedings U/s 148 are still pending for the Assessment Year 2019-20, and he would also file response to the rejoinder affidavit after seeking instructions from the concerned Income Tax Department authorities with respect to the second aspect concerning conversion of the company from private limited to public limited.

3. Let the needful be done within a period of ten days.

4. The counter affidavit has been filed on behalf of the Income Tax Department vide diary no.3111 dated 08.12.2023. The Ld. Counsel representing the petitioner states that the rejoinder affidavit has been filed vide diary no.3174 dated 13.12.2023 with copy already supplied to the opposite side. The same are taken on record.

5. The matter be adjourned for further hearing on 11th January, 2024.

-Sd- ***-Sd-***

(Ashish Verma) **(Praveen Gupta)**
Member (Technical) **Member (Judicial)**

14th December, 2023

Kavya Prakash Srivastava
(Stenographer)